

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1030

By: Kendrix

AS INTRODUCED

An Act relating to sunset; amending 59 O.S. 2021, Section 199.2, which relates to the State Board of Cosmetology and Barbering; re-creating the Board; and modifying the termination date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 199.2, is amended to read as follows:

Section 199.2. A. 1. There is hereby re-created, to continue until July 1, ~~2024~~ 2025, in accordance with the provisions of the Oklahoma Sunset Law, a State Board of Cosmetology and Barbering which shall be composed of eleven (11) members to be appointed by the Governor and to serve at the pleasure of the Governor.

2. One member shall be appointed from each congressional district and the additional members shall be appointed at-large. However, when congressional districts are redrawn, each member appointed prior to July 1 of the year in which such modification becomes effective shall complete the current term of office and appointments made after July 1 of the year in which such

1 modification becomes effective shall be based on the redrawn
2 districts. Appointments made after July 1 of the year in which such
3 modification becomes effective shall be from any redrawn districts
4 which are not represented by a board member until such time as each
5 of the modified congressional districts are represented by a board
6 member. One member shall be a barber appointed at-large.

7 3. At the time of appointment, the members shall be citizens of
8 this state, at least twenty-five (25) years of age, and shall be
9 high school graduates. Six members shall, at the time of
10 appointment, have had at least five (5) years' continuous practical
11 experience in the practice of cosmetology in this state; one member
12 shall be appointed at large and, at the time of the appointment,
13 have had at least five (5) years' continuous practical experience in
14 the practice of barbering in this state; one member shall be a lay
15 person; one member shall be an administrator of a licensed private
16 cosmetology school; one member shall be an administrator of a
17 licensed barber school; and one member shall be an administrator of
18 a public school licensed to teach cosmetology or barbering.

19 4. No two members shall be graduates of the same cosmetology
20 school, nor shall they be organizers of or promote the organization
21 of any cosmetic, beauty, or hairdressers' association. Each of the
22 eight cosmetology appointees shall continue to be actively engaged
23 in the profession of cosmetology while serving. No two members
24 engaged in the profession of barbering shall be organizers of or
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1 promote the organization of any barbering association. Each of the
2 two barbering appointees shall continue to be actively engaged in
3 the profession of barbering while serving.

4 5. If any member retires or ceases to practice his or her
5 profession during the term of membership on the Board, such terms
6 shall automatically cease and the Governor shall appoint a like-
7 qualified person to fulfill the remainder of the term.

8 B. The terms of office for Board members shall be four (4)
9 years ending June 30.

10 C. Each member shall serve until a successor is appointed and
11 qualified.

12 D. Six members of the Board shall constitute a quorum for the
13 transaction of business.

14 E. The Governor may remove any member of the Board at any time
15 at the Governor's discretion. Vacancies shall be filled by
16 appointment by the Governor for the unexpired portion of the term.

17 F. The Board shall organize by electing from its membership a
18 chair and vice-chair, each to serve for a period of one (1) year.
19 The presiding officer shall not be entitled to vote upon any
20 question except in the case of a tie vote.

21 Members shall be reimbursed for their actual and necessary
22 traveling expenses as provided by the State Travel Reimbursement
23 Act.
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1 G. Within thirty (30) days after the end of each fiscal year,
2 the Board shall make a full report to the Governor of all its
3 receipts and expenditures, and also a full statement of its work
4 during the year, together with such recommendations as the Board
5 deems expedient.

6 H. The Board may expend funds for suitable office space for the
7 transaction of its business. The Board shall adopt a common seal
8 for the use of the executive director in authenticating Board
9 documents.

10 I. The Board shall meet at its office for the transaction of
11 such business as may come before it on the second Monday in January,
12 March, May, July, September, and November and at such other times as
13 it may deem advisable.

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